

# Draft List of Issues for Preliminary Hearing

## DRAFT LIST OF ISSUES FOR PRELIMINARY HEARING

**\*\*Tribunal:\*\*** Watford Employment Tribunal

**\*\*Case:\*\*** Minhas v Lonza Biologics Plc (6045461/2025)

### 1. DISABILITY (s.6 EqA 2010)

- 1.1 Did the Claimant have a mental health condition (Anxiety/Stress/Medication side-effects) at the material time?
- 1.2 Did this condition have a substantial and long-term adverse effect on his ability to carry out normal day-to-day activities?
- 1.3 When did the Respondent first have knowledge (actual or constructive) of this disability?

### 2. DISCRIMINATION ARISING FROM DISABILITY (s.15 EqA 2010)

- 2.1 Did the Respondent treat the Claimant unfavourably by extending his probation and imposing specific targets on 13 Sept 2025?
- 2.2 Was this treatment because of something arising in consequence of his disability (e.g., need for frequent breaks, cognitive impact of medication)?
- 2.3 Can the Respondent show the treatment was a proportionate means of achieving a legitimate aim?

### 3. REASONABLE ADJUSTMENTS (s.20/21 EqA 2010)

- 3.1 Did the Respondent apply a PCP (fixed start times/plant presence)?
- 3.2 Did this PCP put the Claimant at a substantial disadvantage compared to non-disabled persons?
- 3.3 Did the Respondent fail to take such steps as were reasonable to avoid the disadvantage?

### 4. VICTIMISATION (s.27 EqA 2010)

- 4.1 Did the Claimant perform protected acts (Grievance 6 Oct 2025, Data Protection complaints)?
- 4.2 Was the Claimant subjected to detriments (16-query monitoring, dismissal) because he had performed these acts?

### 5. AUTOMATIC UNFAIR DISMISSAL (s.103A ERA 1996)

- 5.1 Did the Claimant make protected disclosures regarding patient safety (Oct/Nov 2025)?
- 5.2 Was the making of these disclosures the principal reason for the Claimant's dismissal?

\*Drafted for the Watford Preliminary Hearing v19.0\*